SECOND AMENDMENT TO PURCHASE AND SALE AGREEMENT

THIS SECOND AMENDMENT TO PURCHASE AND SALE AGREEMENT (THIS "Second Amendment") is made and entered into as of the 27th day of March 2017, by and between **CFS Tucson, LLC**, (hereinafter "SELLER") and **FDJ HESPERIA, LLC AND OR ASSIGNEES,** (hereinafter "BUYER"):

RECITALS:

A. Seller and Buyer entered into that certain Purchase and Sale Agreement dated December 14th, 2016 (the "Agreement"), pursuant to which Seller agreed to sell to Buyer and Buyer agreed to purchase from Seller the Comfort Suites at Tucson Mall.
B. The parties now desire to amend the agreement pursuant to the terms and conditions hereof.

AGREEMENT:

NOW THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto hereby agree as follows.

1. Closing Date. The closing date shall be extended to April 14th, 2017.
2. Counterparts. This Second Amendment may be executed in two or more counterparts, each of which shall be deemed originals, and all of which taken together shall constitute one instrument. This Second Amendment may be executed by facsimile signatures which shall be binding on the parties hereto, with original signatures to be delivered as soon as reasonably practical thereafter.
3. Authority. Each person executing this Second Amendment represents that he or she has all authority required to execute and deliver this Second Amendment on behalf of Buyer or Seller, as the case may be.
4. Ratification. Seller and Buyer hereby ratify and confirm all of their obligations under the Agreement. Except as hereby amended by this Second Amendment, the Agreement is not amended, modified, or altered in any way and remains in full force and effect.

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IN WITNESS WHEREOF, the parties have executed this Second Amendment, the day and year above written.

SELLER:
CFS Tucson, LLC

_____ 3.27.17
By: Mr. Randal G. Dix, TTEE DATE

BUYER:
FDJ HESPERIA, LLC

_____ _____
By: Mr. Robert L. Burton DATE

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